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No. 19–5795. *LICKERS v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 928 F. 3d 609.

No. 19–5798. *DAVIS v. JOHN HANCOCK MUTUAL FUNDS ACCOUNTS*. C. A. 1st Cir. Certiorari denied.

No. 19–5801. *CHILES v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 31.

No. 19–5808. *DONAHUE v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 195 A. 3d 1018.

No. 19–5810. *LOPEZ DEJESUS v. PREMO, SUPERINTENDENT, OREGON STATE PENITENTIARY*. C. A. 9th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 775.

No. 19–5811. *EDGER v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 924 F. 3d 1011.

No. 19–5812. *PASTOR v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 162.

No. 19–5813. *PLAZA-MONTECILLO v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 84.

No. 19–5814. *MESTA v. MYRICK*. C. A. 9th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 1032.

No. 19–5816. *MAALOUF v. PRAETORIAN INSURANCE CO.* Ct. App. Nev. Certiorari denied. Reported below: 134 Nev. 975.

No. 19–5818. *RILEY v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 920 F. 3d 200.

No. 19–5819. *RATHBURN v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 614.

No. 19–5822. *TUTTLE v. UNITED STATES*. C. A. 2d Cir. Certiorari denied.

No. 19–5825. *GARCIA-ZAVALA v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 919 F. 3d 108.

No. 19–5831. *DAVIS v. ILLINOIS*. Sup. Ct. Ill. Certiorari denied.

No. 19–5833. *COPELAND v. KANSAS*. Ct. App. Kan. Certiorari denied. Reported below: 56 Kan. App. 2d xxxiv, 422 P. 3d 1208.

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No. 19–5835. *MARTINEZ-HERNANDEZ ET AL. v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 932 F. 3d 1198.

No. 19–5837. *MOLLIKA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–5838. *SMITH v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 91.

No. 19–5842. *SPENCER v. MICHIGAN*. Ct. App. Mich. Certiorari denied.

No. 19–5844. *ROSS v. MYRICK, SUPERINTENDENT, TWO RIVERS CORRECTIONAL INSTITUTION, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–5847. *WHITE v. OHIO*. Ct. App. Ohio, 10th App. Dist., Franklin County. Certiorari denied. Reported below: 2017-Ohio-810, 85 N. E. 3d 1170.

No. 19–5853. *TKHILAISHVILI v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 926 F. 3d 1.

No. 19–5854. *DAVIS v. BANKERS LIFE & CASUALTY Co.* Sup. Ct. S. C. Certiorari denied.

No. 19–5856. *VILLARREAL HEREDIA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 758 Fed. Appx. 625.

No. 19–5857. *FLOM v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 763 Fed. Appx. 27.

No. 19–5861. *SAINE v. UNITED STATES*. C. A. 7th Cir. Certiorari denied.

No. 19–5866. *LOERA v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 923 F. 3d 907.

No. 19–5870. *CRAWFORD v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 767 Fed. Appx. 563.

No. 19–5871. *JONES v. UNITED STATES*. C. A. 7th Cir. Certiorari denied.

No. 19–5872. *WENTZEL v. UNITED STATES*. C. A. 7th Cir. Certiorari denied.

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No. 19–5874. *KIRKLAND v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 19–5876. *DRESSLER v. CIRCUIT COURT OF WISCONSIN, RACINE COUNTY*. Ct. App. Wis. Certiorari denied.

No. 19–5877. *FAULKNER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 926 F. 3d 266.

No. 19–5878. *JACKSON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 768 Fed. Appx. 400.

No. 19–5880. *LARSON v. PACHECO, WARDEN*. Sup. Ct. Wyo. Certiorari denied.

No. 19–5883. *JOHNSON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 768 Fed. Appx. 920.

No. 19–5884. *CARSON v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 924 F. 3d 467.

No. 19–5888. *TKHILAISHVILI v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 926 F. 3d 1.

No. 19–5890. *CABRAL-VARELA v. MASSACHUSETTS*. App. Ct. Mass. Certiorari denied. Reported below: 95 Mass. App. 1102, 124 N. E. 3d 158.

No. 19–5891. *ISLAND v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 916 F. 3d 249.

No. 19–5895. *EADY v. MASSACHUSETTS*. App. Ct. Mass. Certiorari denied. Reported below: 95 Mass. App. 1116, 125 N. E. 3d 802.

No. 19–5897. *LEMA NOGALES v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 182.

No. 19–5909. *TALMAN v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 268 So. 3d 705.

No. 19–5918. *THOMAS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–5922. *MUNOZ, AKA MUNOZ RUIZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 119.

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No. 19–5931. *ALLEN v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 203 A. 3d 343.

No. 19–5938. *BECKMAN v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–5941. *CHA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 254.

No. 19–5944. *SCOTT v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–5953. *JUAN VALLEJO v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 129.

No. 19–5961. *WHITEHEAD v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 755.

No. 19–5975. *TULL-ABREU v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 921 F. 3d 294.

No. 19–5983. *LLAMAS-DELGADO v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 928 F. 3d 702.

No. 19–6008. *TIPPENS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 383.

No. 18–1509. *DEPARTMENT OF HOMELAND SECURITY ET AL. v. IBRAHIM*. C. A. 9th Cir. Motion for leave to file reply brief under seal with redacted copies for the public record granted. Certiorari denied. JUSTICE ALITO would grant the petition for writ of certiorari. JUSTICE KAGAN took no part in the consideration or decision of this motion and this petition. Reported below: 912 F. 3d 1147.

No. 18–1522. *DOE v. UNITED STATES*. C. A. 9th Cir. Motion for leave to file brief in opposition under seal with redacted copies for the public record granted. Motion for leave to file reply brief under seal with redacted copies for the public record granted. Certiorari denied. Reported below: 747 Fed. Appx. 575.

No. 19–275. *SCHULTZ v. ROBERTS, CHIEF JUSTICE, SUPREME COURT OF THE UNITED STATES, ET AL.* C. A. 9th Cir. Certiorari denied. THE CHIEF JUSTICE took no part in the consideration or decision of this petition. Reported below: 740 Fed. Appx. 628.

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No. 19–5796. *BELTRAN LEYVA v. UNITED STATES*. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 916 F. 3d 14.

No. 19–5911. *BUTTS v. WILSON, WARDEN*. C. A. 5th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition. Reported below: 772 Fed. Appx. 56.

No. 19–5928. *SANTIAGO v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

Rehearing Denied

No. 18–7647. *SMITH ET VIR v. MANASQUAN SAVINGS BANK*, 587 U. S. 1041;

No. 18–8422. *YOUNG v. ALABAMA*, 587 U. S. 992; and

No. 18–9038. *PETERS v. ILLINOIS*, 587 U. S. 1067. Petitions for rehearing denied.

No. 18–277. *BHAGAT v. IANCU, DIRECTOR, UNITED STATES PATENT AND TRADEMARK OFFICE*, 586 U. S. 981. Motion for leave to file petition for rehearing denied.

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Dismissals Under Rule 46

No. 18–1211. *NUSTAR ENERGY SERVICES, INC. v. ING BANK N. V. ET AL.* C. A. 5th Cir. Certiorari dismissed under this Court’s Rule 46. Reported below: 760 Fed. Appx. 245.

No. 18–1224. *NUSTAR ENERGY SERVICES, INC. v. ING BANK N. V. ET AL.* (two judgments). C. A. 2d Cir. Certiorari denied. Reported below: 911 F. 3d 646 (first judgment); 745 Fed. Appx. 414 (second judgment).

OCTOBER 18, 2019

Certiorari Granted

No. 18–1432. *NASRALLAH v. BARR, ATTORNEY GENERAL*. C. A. 11th Cir. Certiorari granted. Reported below: 762 Fed. Appx. 638.

No. 19–161. *DEPARTMENT OF HOMELAND SECURITY ET AL. v. THURAISSIGIAM*. C. A. 9th Cir. Certiorari granted. Reported below: 917 F. 3d 1097.

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No. 18–8369. *LOMAX v. ORTIZ-MARQUEZ ET AL.* C. A. 10th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted limited to the following question: “Does a dismissal without prejudice for failure to state a claim count as a strike under 28 U.S.C. § 1915(g)?” Reported below: 754 Fed. Appx. 756.

No. 19–7. *SEILA LAW LLC v. CONSUMER FINANCIAL PROTECTION BUREAU.* C. A. 9th Cir. Motion of United States House of Representatives for leave to file brief as *amicus curiae* out of time granted. Motion of Alan B. Morrison for leave to file brief as *amicus curiae* out of time granted. Certiorari granted. In addition to the question presented by the petition, the parties are directed to brief and argue the following question: “If the Consumer Financial Protection Bureau is found unconstitutional on the basis of the separation of powers, can 12 U.S.C. § 5491(c)(3) be severed from the Dodd-Frank [Wall Street Reform and Consumer Protection] Act?” Reported below: 923 F.3d 680.

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Vacated and Remanded on Appeal

No. 19–220. *CHATFIELD ET AL. v. LEAGUE OF WOMEN VOTERS OF MICHIGAN ET AL.* Appeal from D. C. E. D. Mich. Judgment vacated, and case remanded for further consideration in light of *Rucho v. Common Cause*, 588 U.S. 684 (2019). Reported below: 373 F. Supp. 3d 867.

Certiorari Granted—Vacated and Remanded

No. 19–5181. *JOHNSON v. UNITED STATES.* C. A. 9th Cir. Reported below: 913 F.3d 793;

No. 19–5217. *WATKINS v. UNITED STATES.* C. A. 11th Cir.; and

No. 19–5623. *LEGRIER v. UNITED STATES.* C. A. 2d Cir. Reported below: 768 Fed. Appx. 48. Motions of petitioners for leave to proceed *in forma pauperis* granted. Certiorari granted, judgments vacated, and cases remanded for further consideration in light of *Rehaif v. United States*, 588 U.S. 225 (2019).

Certiorari Dismissed

No. 19–5971. *SCHMIDT v. HERBERT, GOVERNOR OF UTAH.* C. A. 10th Cir. Motion of petitioner for leave to proceed *in forma*

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pauperis denied, and certiorari dismissed. See this Court's Rule 39.8. Reported below: 778 Fed. Appx. 596.

Miscellaneous Orders

No. D-3044. *IN RE DISBARMENT OF SMITH*. Disbarment entered. [For earlier order herein, see 588 U. S. 933.]

No. 19M56. *VELASQUEZ PEREZ v. DIAZ PALENCIA*; and

No. 19M57. *DOE v. DARDANELLE SCHOOL DISTRICT*. Motions for leave to file petitions for writs of certiorari with supplemental appendixes under seal granted.

No. 19M58. *BITON v. BARR, ATTORNEY GENERAL, ET AL.*; and

No. 19M59. *BITON v. VERRILLI ET AL.* Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 65, Orig. *TEXAS v. NEW MEXICO*. Conditional motion of Texas for review of the Special Master's 2019 final determination granted. [For earlier order herein, see, *e. g.*, 589 U. S. 911.]

No. 18-938. *RITZEN GROUP, INC. v. JACKSON MASONRY, LLC*. C. A. 6th Cir. [Certiorari granted, 587 U. S. 1014.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18-7739. *HOLGUIN-HERNANDEZ v. UNITED STATES*. C. A. 5th Cir. [Certiorari granted, 587 U. S. 1039.] Motion of the Solicitor General for divided argument granted, and the time is divided as follows: 15 minutes for petitioner, 15 minutes for the Solicitor General in support of vacatur, and 30 minutes for Court-appointed *amicus curiae* in support of the judgment below.

No. 19-5632. *T. A. ET AL. v. LEFF ET AL.*; and *KRAMER ET AL. v. DANE ET AL.* C. A. 2d Cir. Motion of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until November 12, 2019, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 19-421. *IN RE HAMMAN*;

No. 19-6066. *IN RE COLLIER*;

No. 19-6093. *IN RE STONE ET AL.*; and

No. 19-6134. *IN RE WIMBUSH ET UX*. Petitions for writs of habeas corpus denied.

No. 19-338. *IN RE APPEL ET AL.* Petition for writ of mandamus denied.

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Certiorari Denied

No. 18–1446. *SEXTON EX REL. APPALACHIAN REGIONAL HEALTHCARE, INC. v. KENTUCKY CABINET FOR HEALTH AND FAMILY SERVICES ET AL.* Sup. Ct. Ky. Certiorari denied. Reported below: 566 S. W. 3d 185.

No. 18–1506. *MARTIN v. UNITED STATES.* C. A. 7th Cir. Certiorari denied. Reported below: 910 F. 3d 320.

No. 18–1515. *ELI LILLY & Co. v. ERFINDERGEMEINSCHAFT UROPEP GBR.* C. A. Fed. Cir. Certiorari denied. Reported below: 739 Fed. Appx. 643.

No. 18–1543. *KATZ, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED v. CELLCO PARTNERSHIP, DBA VERIZON WIRELESS.* C. A. 2d Cir. Certiorari denied. Reported below: 756 Fed. Appx. 103.

No. 18–1554. *BLESSINGER v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 752 Fed. Appx. 765.

No. 19–73. *GAHAGAN v. CITIZENSHIP AND IMMIGRATION SERVICES.* C. A. 5th Cir. Certiorari denied. Reported below: 911 F. 3d 298.

No. 19–75. *GARNER v. COLORADO.* Sup. Ct. Colo. Certiorari denied. Reported below: 436 P. 3d 1107.

No. 19–76. *MARQUARDT, DEPUTY SHERIFF v. FLETCHER.* C. A. 9th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 449.

No. 19–170. *E Co. ET AL. v. TRUSTEES OF THE SUBURBAN TEAMSTERS OF NORTHERN ILLINOIS PENSION FUND.* C. A. 7th Cir. Certiorari denied. Reported below: 914 F. 3d 1037.

No. 19–201. *HANSON v. ALLERT.* Ct. App. Cal., 4th App. Dist., Div. 3. Certiorari denied.

No. 19–204. *CARRICK v. RICE ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 615.

No. 19–207. *GROBER ET AL. v. MAKO PRODUCTS, INC.* C. A. Fed. Cir. Certiorari denied. Reported below: 745 Fed. Appx. 159.

No. 19–210. *OLAECHEA, AKA SIMMONDS v. OLAECHEA.* Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 260 So. 3d 387.

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No. 19–215. *NEVELS v. PIGGLY WIGGLY CORP. ET AL.* Ct. Civ. App. Ala. Certiorari denied. Reported below: 298 So. 3d 485.

No. 19–217. *DAVINCI AIRCRAFT, INC. v. UNITED STATES ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 926 F. 3d 1117.

No. 19–218. *XIU JIAN SUN v. WU HUA JING ET AL.* App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied.

No. 19–226. *SMITH v. CARUSOS.* C. A. 2d Cir. Certiorari denied.

No. 19–231. *PERKINS v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION.* C. A. 5th Cir. Certiorari denied.

No. 19–236. *AMMIYHUWD v. POMPEO, SECRETARY OF STATE, ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 345.

No. 19–246. *JALLALI v. FLORIDA.* Sup. Ct. Fla. Certiorari denied.

No. 19–258. *KATZIN ET AL. v. UNITED STATES.* C. A. Fed. Cir. Certiorari denied. Reported below: 908 F. 3d 1350.

No. 19–262. *XIAO-YING YU v. NEALL, SECRETARY, MARYLAND DEPARTMENT OF HEALTH, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 561.

No. 19–270. *RODRIGUEZ v. LPP MORTGAGE LTD., LP.* C. A. 9th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 428.

No. 19–316. *HANSEN v. SALT LAKE CITY CORPORATION.* C. A. 10th Cir. Certiorari denied. Reported below: 764 Fed. Appx. 770.

No. 19–334. *DIAMOND v. UNITED STATES ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 377.

No. 19–344. *QIHUI HUANG v. PAI, CHAIRMAN OF FEDERAL COMMUNICATIONS COMMISSION, ET AL.* C. A. D. C. Cir. Certiorari denied.

No. 19–349. *SWISHER INTERNATIONAL, INC. v. TRENDSETTAH USA, INC., ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 761 Fed. Appx. 714.

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No. 19–364. *WILLIAMS v. VIRGINIA*. Sup. Ct. Va. Certiorari denied.

No. 19–366. *LANGE v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 5th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 635.

No. 19–372. *JENKINS ET AL. v. CHANCE ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 762 Fed. Appx. 450.

No. 19–374. *BYRNS v. MARYLAND*. Ct. Sp. App. Md. Certiorari denied. Reported below: 240 Md. App. 724.

No. 19–419. *SAULSBERRY v. LEE, WARDEN*. C. A. 6th Cir. Certiorari denied. Reported below: 937 F. 3d 644.

No. 19–5246. *ROSADO v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–5592. *SPAULDING v. OHIO*. Sup. Ct. Ohio. Certiorari denied. Reported below: 155 Ohio St. 3d 1455, 2019-Ohio-1759, 122 N. E. 3d 216.

No. 19–5615. *REMENAR v. REMENAR, NKA SOLBERG*. Ct. App. Ore. Certiorari denied. Reported below: 294 Ore. App. 885, 431 P. 3d 105.

No. 19–5628. *ROCHESTER v. NEW YORK STATE DIVISION OF HUMAN RIGHTS ET AL.* App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied.

No. 19–5637. *WILSON v. MARION POLICE DEPARTMENT ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 289.

No. 19–5639. *CRAWFORD v. GEORGIA*. Ct. App. Ga. Certiorari denied.

No. 19–5644. *CUMBEE v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–5649. *O'BRIEN v. HACKER-AGNEW, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 632.

No. 19–5650. *WILLIAMS v. PARAMO, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied.

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No. 19–5660. *SANCHEZ v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 193 A. 3d 1124.

No. 19–5664. *SHEPPARD v. TEXAS* (two judgments). Ct. Crim. App. Tex. Certiorari denied.

No. 19–5674. *TEAGUE v. REGENT FINANCIAL GROUP, INC., ET AL.* C. A. 8th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 770.

No. 19–5680. *CURRY v. VANCOUVER HOUSING AUTHORITY ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 499.

No. 19–5692. *COCHRAN v. DOOLEY, WARDEN.* C. A. 8th Cir. Certiorari denied.

No. 19–5694. *FARLEY v. DIAZ, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION.* C. A. 9th Cir. Certiorari denied.

No. 19–5696. *WILLIAMS v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–5703. *MASSEY v. VANNOY, WARDEN.* C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 121.

No. 19–5709. *NEWMAN v. LOUISIANA.* Ct. App. La., 4th Cir. Certiorari denied. Reported below: 2016–0842 (La. App. 4 Cir. 6/27/18), 249 So. 3d 142.

No. 19–5768. *VILLALONA v. FLORIDA.* Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 272 So. 3d 1277.

No. 19–5802. *MATTHEWS v. PENNSYLVANIA.* Super. Ct. Pa. Certiorari denied. Reported below: 196 A. 3d 242.

No. 19–5840. *STUCKEY v. CALIFORNIA.* Sup. Ct. Cal. Certiorari denied.

No. 19–5879. *JOE v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–5912. *MERAZ LEON v. RYAN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 9th Cir. Certiorari denied.

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No. 19–5913. *SMITH v. FLORIDA*. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 273 So. 3d 942.

No. 19–5917. *CASTRO v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–5919. *CARTER v. LOUISIANA*. Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2018–0078 (La. App. 1 Cir. 12/17/18).

No. 19–5932. *MYERS v. UNITED STATES*. Ct. App. D. C. Certiorari denied. Reported below: 179 A. 3d 868.

No. 19–5951. *HARRIS v. SMITH, WARDEN*. C. A. 7th Cir. Certiorari denied.

No. 19–5955. *HEILMAN v. BLADES, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–5956. *APODACA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 462.

No. 19–5959. *FERGERSON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 694 Fed. Appx. 685.

No. 19–5962. *TJADER v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 927 F. 3d 483.

No. 19–5963. *YUGOPICIO-ROJAS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 671.

No. 19–5969. *BANKS v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 763 Fed. Appx. 132.

No. 19–5970. *RAZZAQ v. KANSAS*. Sup. Ct. Kan. Certiorari denied. Reported below: 309 Kan. 544, 439 P. 3d 903.

No. 19–5974. *O’MALLEY v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 462.

No. 19–5976. *DEDMON v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–5982. *CABALLERO DE LA TORRE v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 167.

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No. 19–5996. *POTTER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 927 F. 3d 446.

No. 19–6018. *LITTLE v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 719.

No. 19–6019. *ANTONIO MURILLO v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 166.

No. 19–6020. *ROMEU v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 496.

No. 19–6021. *VALLES DE LA ROSA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 210.

No. 19–6027. *COMBS v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–6030. *ELIAS v. CAPOZZA, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FAYETTE, ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 774 Fed. Appx. 745.

No. 19–6035. *ESPINAL-RIVERA v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–6052. *LEE v. FLORIDA ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–6064. *COLE v. RACKLEY, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 18–1386. *LIPSCHULTZ, COMMISSIONER OF THE MINNESOTA PUBLIC UTILITIES COMMISSION, ET AL. v. CHARTER ADVANCED SERVICES (MN), LLC, ET AL.* C. A. 8th Cir. Certiorari denied. THE CHIEF JUSTICE took no part in the consideration or decision of this petition. Reported below: 903 F. 3d 715.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring.

Charter Advanced Services provides Voice over Internet Protocol services, which allow users to place voice calls over an Internet connection. After the Minnesota Public Utilities Commission attempted to regulate Charter’s provision of these services, Charter brought suit in federal court, arguing that the state regulation was pre-empted. The District Court granted summary judgment to Charter. The Eighth Circuit affirmed, reason-

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ing that the Federal Communications Commission’s “policy of non-regulation” of these services pre-empted state law. *Charter Advanced Servs. (MN), LLC v. Lange*, 903 F. 3d 715, 718 (2018) (internal quotation marks omitted).

I agree with the Court’s determination that this case does not satisfy our criteria for certiorari. I write to explain why, in an appropriate case, we should consider whether a federal agency’s policy can pre-empt state law.

The Supremacy Clause of the Constitution provides:

“This Constitution, and the Laws of the United States which shall be made in Pursuance thereof; and all Treaties made, or which shall be made, under the Authority of the United States, shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding.” Art. VI, cl. 2.

The Clause contains a *non obstante* provision, a common device used by 18th-century legislatures to signal the implied repeal of conflicting statutes. See *PLIVA, Inc. v. Mensing*, 564 U.S. 604, 621 (2011); see also Nelson, Preemption, 86 Va. L. Rev. 225, 237–242, 245–246 (2000). At the time of the founding, this Clause would have been understood to pre-empt state law only if the law logically contradicted the “Constitution,” the “Laws of the United States,” or “Treaties.” See *id.*, at 260.

It is doubtful whether a federal policy—let alone a policy of nonregulation—is “Law” for purposes of the Supremacy Clause. Under our precedent, such a policy likely is not final agency action because it does not mark “the consummation of the agency’s decisionmaking process” or determine Charter’s “rights or obligations.” *Bennett v. Spear*, 520 U.S. 154, 177–178 (1997) (internal quotation marks omitted); see also *Merck Sharp & Dohme Corp. v. Albrecht*, 587 U.S. 299, 322 (2019) (THOMAS, J., concurring). Even if it were final agency action, the Supremacy Clause “requires that pre-emptive effect be given only to those federal standards and policies that are set forth in, or necessarily follow from, the statutory text that was produced through the constitutionally required bicameral and presentment procedures.” *Wyeth v. Levine*, 555 U.S. 555, 586 (2009) (THOMAS, J., concurring in judgment); see also *Department of Transportation v. Association of American Railroads*, 575 U.S. 43, 86 (2015) (same).

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(“The Government may create generally applicable rules of private conduct only through the proper exercise of legislative power”).

Giving pre-emptive effect to a federal agency policy of nonregulation thus expands the power of both the Executive and the Judiciary. It authorizes the Executive to make “Law” by declining to act, and it authorizes the courts to conduct “a freewheeling judicial inquiry” into the facts of federal nonregulation, rather than the constitutionally proper “inquiry into whether the ordinary meanings of state and federal law conflict,” *Wyeth, supra*, at 588 (THOMAS, J., concurring in judgment) (alteration and internal quotation marks omitted). Because this petition does not clearly challenge the underlying basis of the pre-emption theory, however, I concur in the denial of certiorari.

No. 19–6. *NEW YORK v. JONES*. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 166 App. Div. 3d 803, 88 N. Y. S. 3d 88.

No. 19–232. *NEW MIGHTY U. S. TRUST ET AL. v. SHI, AS EXECUTOR OF THE WILL OF YUEH-LAN WANG, ET AL.* C. A. D. C. Cir. Motion of Professor George A. Bermann for leave to file brief as *amicus curiae* granted. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this motion and this petition. Reported below: 918 F. 3d 944.

No. 19–274. *BUCHANAN v. ALEXANDER ET AL.* C. A. 5th Cir. Motion of National Coalition Against Censorship et al. for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 919 F. 3d 847.

OCTOBER 22, 2019

Dismissal Under Rule 46

No. 18–1498. *UNITEDHEALTH GROUP INC. ET AL. v. PETERSON, ON BEHALF OF PATIENT E ET AL., ET AL.* C. A. 8th Cir. Certiorari dismissed under this Court’s Rule 46.1. Reported below: 913 F. 3d 769.

Miscellaneous Order

No. 19A368. *BP P. L. C. v. MAYOR AND CITY COUNCIL OF BALTIMORE*. D. C. Md. Application for stay, presented to THE CHIEF JUSTICE, and by him referred to the Court, denied. JUS-

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TICE ALITO took no part in the consideration or decision of this application.

OCTOBER 23, 2019

Miscellaneous Order

No. 19–7. SEILA LAW LLC *v.* CONSUMER FINANCIAL PROTECTION BUREAU. C. A. 9th Cir. [Certiorari granted, 589 U. S. 1031.] Paul D. Clement, Esq., of Washington, D. C., is invited to brief and argue this case as *amicus curiae* in support of judgment below on the question presented by the petition.

OCTOBER 30, 2019

Miscellaneous Order

No. 19A429. BANK OF AMERICA CORP. ET AL. *v.* CITY OF MIAMI, FLORIDA. C. A. 11th Cir. Application for stay, presented to JUSTICE THOMAS, and by him referred to the Court, denied.

NOVEMBER 1, 2019

Miscellaneous Order

No. 18–587. DEPARTMENT OF HOMELAND SECURITY ET AL. *v.* REGENTS OF THE UNIVERSITY OF CALIFORNIA ET AL. C. A. 9th Cir.;

No. 18–588. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL. *v.* NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE ET AL. C. A. D. C. Cir.; and

No. 18–589. MCALEENAN, ACTING SECRETARY OF HOMELAND SECURITY, ET AL. *v.* BATALLA VIDAL ET AL. C. A. 2d Cir. [Certiorari granted, 588 U. S. 919.] A total of 80 minutes is allotted for oral argument, and the time is divided as follows: 40 minutes for the Solicitor General, 20 minutes for private respondents, and 20 minutes for state respondents.

Certiorari Granted

No. 18–1501. LIU ET AL. *v.* SECURITIES AND EXCHANGE COMMISSION. C. A. 9th Cir. Certiorari granted. Reported below: 754 Fed. Appx. 505.

NOVEMBER 4, 2019

Certiorari Granted—Vacated and Remanded

No. 19–5308. MINAYA *v.* UNITED STATES. C. A. 2d Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted.

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Certiorari granted, judgment vacated, and case remanded for further consideration in light of *United States v. Davis*, 588 U. S. 445 (2019). Reported below: 761 Fed. Appx. 53.

No. 19–5333. *WALKER v. UNITED STATES*. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019). Reported below: 922 F. 3d 239.

Miscellaneous Orders

No. 19A486. *RHINES v. SOUTH DAKOTA DEPARTMENT OF CORRECTIONS ET AL.* Application for stay of execution of sentence of death, presented to JUSTICE GORSUCH, and by him referred to the Court, denied.

No. 19M60. *LARSON v. NATIONSTAR MORTGAGE, LLC, DBA CHAMPION MORTGAGE COMPANY OF TEXAS, ET AL.* Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 19M61. *LAMPRELL v. STUCKEY*. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 19M62. *MAY v. WILKIE, SECRETARY OF VETERANS AFFAIRS*. Motion to direct the Clerk to file petition for writ of certiorari out of time under this Court's Rule 14.5 denied.

No. 17–1498. *ATLANTIC RICHFIELD Co. v. CHRISTIAN ET AL.* Sup. Ct. Mont. [Certiorari granted, 587 U. S. 1050.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–935. *MONASKY v. TAGLIERI*. C. A. 6th Cir. [Certiorari granted, 587 U. S. 1051.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–1150. *GEORGIA ET AL. v. PUBLIC.RESOURCE.ORG, INC.* C. A. 11th Cir. [Certiorari granted, 588 U. S. 904.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

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No. 19–5721. IN RE SCHAFER. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until November 25, 2019, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 19–441. IN RE PATTERSON;
No. 19–6247. IN RE McDONALD; and
No. 19–6251. IN RE MAKDESSI. Petitions for writs of habeas corpus denied.

No. 19–6173. IN RE KRETZER. Petition for writ of habeas corpus denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

No. 19–6479 (19A484). IN RE RHINES. Application for stay of execution of sentence of death, presented to JUSTICE GORSUCH, and by him referred to the Court, denied. Petition for writ of habeas corpus denied.

No. 19–238. IN RE HOTZE HEALTH WELLNESS CENTER INTERNATIONAL ONE, LLC, ET AL. Petition for writ of mandamus denied.

No. 19–5684. IN RE MITCHELL; and
No. 19–6031. IN RE DOYLE. Petitions for writs of mandamus and/or prohibition denied.

Certiorari Denied

No. 18–963. HILL *v.* CITY OF JACKSON, MICHIGAN, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 751 Fed. Appx. 772.

No. 18–1343. PRINCETON DIGITAL IMAGE CORP. *v.* ADOBE INC. C. A. Fed. Cir. Certiorari denied. Reported below: 913 F. 3d 1342.

No. 18–1490. COURT OF COMMON PLEAS OF PENNSYLVANIA, BUCKS COUNTY, ET AL. *v.* PIASECKI. C. A. 3d Cir. Certiorari denied. Reported below: 917 F. 3d 161.

No. 18–1500. BELL *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied.

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No. 18–1530. *ENPLAS DISPLAY DEVICE CORP. v. SEOUL SEMI-CONDUCTOR CO., LTD.* C. A. Fed. Cir. Certiorari denied. Reported below: 909 F. 3d 398.

No. 18–1565. *ROGERS v. SWEPI LP ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 497.

No. 18–1566. *SCOVILLE v. SECURITIES AND EXCHANGE COMMISSION.* C. A. 10th Cir. Certiorari denied. Reported below: 913 F. 3d 1204.

No. 18–7806. *BERKA v. CITY OF MIDDLETOWN, CONNECTICUT.* App. Ct. Conn. Certiorari denied. Reported below: 181 Conn. App. 159, 185 A. 3d 596.

No. 18–8951. *PROCTOR v. KELLEY, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION.* Sup. Ct. Ark. Certiorari denied. Reported below: 2018 Ark. 382, 562 S. W. 3d 837.

No. 18–9043. *BINKHOLDER v. UNITED STATES.* C. A. 8th Cir. Certiorari denied. Reported below: 909 F. 3d 215.

No. 18–9062. *KING v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 749 Fed. Appx. 309.

No. 18–9407. *VERDUZCO-MAGANA v. UNITED STATES.* C. A. 9th Cir. Certiorari denied.

No. 18–9411. *ROCKETT v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 752 Fed. Appx. 448.

No. 18–9431. *SMITH v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 733 Fed. Appx. 415.

No. 18–9485. *TAYLOR v. NEW YORK.* App. Div., Sup. Ct. N. Y., 4th Jud. Dept. Certiorari denied. Reported below: 158 App. Div. 3d 1095, 72 N. Y. S. 3d 256.

No. 18–9567. *DE LEON v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 494.

No. 18–9571. *JONES v. VANNOY, WARDEN.* C. A. 5th Cir. Certiorari denied.

No. 18–9648. *ARMSTRONG v. CALIFORNIA.* Sup. Ct. Cal. Certiorari denied. Reported below: 6 Cal. 5th 735, 433 P. 3d 987.

No. 18–9664. *JONES v. CALIFORNIA.* Ct. App. Cal., 1st App. Dist., Div. 2. Certiorari denied.

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No. 18–9791. *MORENO-PENA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 762 Fed. Appx. 184.

No. 18–9801. *LONG v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 906 F. 3d 720.

No. 18–9832. *MURPHY v. COLLIER, EXECUTIVE DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 919 F. 3d 913.

No. 19–3. *BEGAY v. NEW MEXICO*. Ct. App. N. M. Certiorari denied.

No. 19–119. *STAPLES, INC., ET AL. v. COMPTROLLER OF THE TREASURY OF MARYLAND*. Ct. Sp. App. Md. Certiorari denied.

No. 19–138. *FIRST STATE COMMUNITY ACTION AGENCY v. ROBINSON*. C. A. 3d Cir. Certiorari denied. Reported below: 920 F. 3d 182.

No. 19–139. *HARDY v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 764 Fed. Appx. 610.

No. 19–222. *VALDERAS v. CITY OF LUBBOCK, TEXAS, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 937 F. 3d 384.

No. 19–230. *PRADE v. OHIO*. Ct. App. Ohio, 9th App. Dist., Summit County. Certiorari denied. Reported below: 2018-Ohio-3551, 107 N. E. 3d 1268.

No. 19–233. *LUKE v. CPLACE FOREST PARK SNF, L. L. C., DBA NOTTINGHAM REGIONAL REHAB CENTER*. C. A. 5th Cir. Certiorari denied. Reported below: 747 Fed. Appx. 978.

No. 19–237. *LA FRIEDA ET AL. v. GILBERT*. Sup. Ct. Nev. Certiorari denied. Reported below: 135 Nev. 674, 435 P. 3d 665.

No. 19–240. *BALLARD v. BALLARD*. Ct. App. Tenn. Certiorari denied.

No. 19–252. *BOOTH v. NISSAN NORTH AMERICA, INC.* C. A. 6th Cir. Certiorari denied. Reported below: 927 F. 3d 387.

No. 19–254. *SHOPHAR v. KANSAS ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 723 Fed. Appx. 579.

No. 19–269. *FLORES v. ENTERGY NUCLEAR OPERATIONS, INC.* C. A. 2d Cir. Certiorari denied. Reported below: 768 Fed. Appx. 139.